

of gift need not be in writing, or of a technical description, but must be clear, irrevocable, and complete; the unsupported testimony of the wife on her own behalf will not be sufficient, but the gift may be proved not only by witnesses at the time, but also by the husband's subsequent declaration. "If," observed Sir J. Romilly, M. R., "*A.* (who has £1000

of the transaction and he taking the dividend; *Cummings v. Bramhall*, 120 Mass. 552; *Powers v. Inst. for Savings*, 124 Mass. 377; also a valid trust where *A.* delivered a bank-book with an assignment of the deposits to *E.* on oral agreement that *E.* should pay such sums as she wanted during her life, and at death balance to son; *Davis v. Ney*, 125 Mass. 590; 28 Am. Rep. 272; *Foss v. Savings Bank*, 111 Mass. 285; *Kingman v. Perkins*, 105 Mass. 111; *Kimball v. Leland*, 110 Mass. 325; *Newton v. Fay*, 10 Allen, 505; parol is admissible to show assignment was made on certain trusts or agreements which equity will enforce; *Campbell v. Dearborn*, 109 Mass. 130; *Hunnewell v. Lane*, 11 Met. 163; a deposit was made in name of nephew *N.*, with a memorandum that it could be paid to *R.*, the depositor keeping the book and taking the dividends; *Northrop v. Hale*, 72 Me. 275; bank in account with *A.*, trustee for *B.*; *Ray v. Simmons*, 11 R. I. 266; 23 Am. Rep. 447; *Minor v. Rogers*, 40 Conn. 512; 16 Am. Rep. 69; donor, holding book, deposited for niece; *Blasdel v. Locke*, 62 N. H. 238; *Howard v. Bank*, 40 Vt. 597; "in trust for *C. F. M.*" raised a sufficiently clear presumption of a gift; *Mills-paugh v. Putnam*, 16 Abb. Pr. 380; *Geary v. Page*, 9 Bosw. 290; *Nutt v. Morse*, 142 Mass. 1; *Sherman v. Bank*, 138 Mass. 581; but where money was placed to credit of children, it is necessary that donor should part with the control of it; *Geary v. Page*, 9 Bosw. 290; a deposit for "*E. K., M. K. guardian,*" depositor keeping book, but informing *M. K.* of it; *Kerrigan v. Rautigan*, 43 Conn. 17; *Mabie v. Bailey*, 95 N. Y. 206; there should be some evidence of delivery; *Minchin v. Merrill*, 2 Edw. Ch. 333; *Chase v. Breed*, 5 Gray, 440; sufficient delivery to pass title is inferred from slight evidence; *Moore v. Hazelton*, 9 Allen, 102; intention has much to do with delivery; *Grangiac v. Arden*, 10 Johns. 293; *Goodrich v. Walker*, 1 Johns. Cas. 251; a check is not a sufficient assignment; *Carr v. Nat'l Security Bank*, 107 Mass. 45; *Exchange Bank v. Rice*, 107 Mass. 37; *Harris v. Clark*, 3 N. Y. 93; a delivery of check payable six months after death of maker does not establish a trust; App. *Waynesburg Coll.* 111 Pa. St. 130; 56 Am. Rep. 252; *Saylor v. Bushong*, 100 Pa. St. 23; *Bank v. Millard*, 10 Wall. 152; a mere declaration of intention to make a future gift or trust is insufficient; *Gray v. Barton*, 55 N. Y. 68; *Little v. Willets*, 55 Barb. 125; *Brink v. Gould*, 43 How. Pr. 289; intestate placed two bonds in separate envelopes, and signed a memorandum that they were for sons *W.* and *J.*, but he retained the income, neither son exercising any control over them; no trust created; *Young v. Young*, 80 N. Y. 422; 36 Am. Rep. 634; payment by bank to administrator of depositor whose account was "in trust for *C. B.*" on production of letter of administration and pass-book, and in absence of any notice to the bank, is valid; *Boone v. Citizens' Sav. Bank*, 84 N. Y. 83; 38 Am. Rep. 498; no trust where *A.* deposited money in name of *B.* without any declaration of trust and not in view of death, *A.* retaining the book; *Robinson v. Ring*, 72 Me. 140; 39 Am. Rep. 308; *Case v. Dennison*, 9 R. I. 88; 11 Am. Rep. 222; there must be a delivery to the donee; *Hill v. Stevenson*, 63 Me. 367; 18 Am. Rep. 231; *Tilling-*